

Reps & Revenue Ltd – Terms & Conditions

Effective date: 24/09/2025

1. Definitions

- a. “Agency” means Reps & Revenue Ltd (UK Company Number **16718995**)
- b. “Services” means the marketing, advertising, funnel, landing page, AI chatbot, automation, lead-generation, and related services set out in the accepted Proposal, Client Service Agreement (CSA) or invoice.
- c. “Deliverables” means work product created by the Agency for the Client under this Agreement.
- d. “Ad Spend” means the funds the Client pays to third-party advertising platforms (Meta, Google, etc.) to run paid media campaigns.
- e. “Proposal” means any written estimate, scope or quotation issued by the Agency describing Services and Fees.
- f. “Law” means the law of England and Wales.

2. Scope and Order of Precedence

- a. The Services and fees are set out in the Proposal or CSA.
- b. In case of conflict: (a) Proposal/CSA; (b) these Terms; (c) any other document negotiated between the parties.

3. Eligibility & Client Representations

- a. Client warrants they are authorised to enter into this Agreement and (if a business) are incorporated and validly existing.
- b. Information provided must be accurate and promptly updated if changes occur.

4. Fees, Invoicing & Payment

- a. Fees are set out in the Proposal/CSA. Currency is USD unless otherwise agreed.
- b. Ad Spend is separate from Agency fees unless explicitly stated. Payment terms are 14 days from invoice date.

- c. Late payments are to be assessed under the Late Payment of Commercial Debts (Interest) Act 1998.
- d. Fees are non-refundable unless otherwise agreed.

5. Performance Guarantees & Risk Reversal (if offered)

- a. Any performance guarantee applies only if Client provides timely access, funds, ad spend, approves creatives promptly, implements recommendations, and avoids interfering with campaigns.
- b. Remedy is limited to pro-rata refund or free continuation of services. No implied revenue guarantee exists beyond what is stated in writing.

6. Client Responsibilities & Cooperation

- a. Client must provide access, creative assets, approvals, and prompt payment.
- b. Failure to cooperate relieves Agency of responsibility for missed deadlines/results and may void performance guarantees.

7. Ad Platforms & Ad Account Ownership

- a. Client retains ownership of ad accounts unless otherwise agreed or in cases of non-payment.
- b. Agency not liable for account suspensions or policy changes. If Agency pays ad spend, Client must reimburse promptly.

8. Intellectual Property

- a. Agency retains ownership of pre-existing IP and tools.
- b. On full payment, IP rights in specific Deliverables transfer to Client. Agency may use anonymised results for marketing unless Client objects.

9. Confidentiality

- a. Both parties will keep each other's Confidential Information secret and use it only for performing obligations hereunder.
- b. Obligations of parties, including those to keep personal information confidential, survive termination for 3 years.

10. Data Protection & Privacy

- a. Agency is typically a processor and Client a controller.

- b. Agency will apply appropriate technical and organisational measures.
- c. Privacy Policy applies to website/funnel visitors and Agency clients.

11. Subcontracting

- a. Agency may subcontract but remains responsible for performance. #
- b. Subcontractors will be bound by confidentiality obligations.

12. Marketing & Case Studies

- a. Agency may use Client's name/logo in promotional materials unless Client objects in writing.
- b. Case studies and testimonials will require Client approval.

13. Warranties & Disclaimers

- a. Agency warrants reasonable skill and care.
- b. No further warranties or terms are incorporated and/or implied beyond those expressly stated herein or in the Proposal/CSA

14. Limitation of Liability

- a. Agency's liability is capped at fees paid in the last 12 months.
- b. The Agency accepts no liability for indirect or consequential loss.
- c. Exceptions apply for death/personal injury due to negligence or fraud.

15. Indemnity

- a. Client indemnifies Agency for losses arising from Client indemnifies Agency for losses arising from Client content, breaches of terms/law/policy, or failure to fund ad spend.
- b. Agency indemnifies Client against losses from Agency's gross negligence or fraud.

16. Term & Termination

- a. Agreement continues per Proposal/CSA or until terminated. Either party may terminate with 30 days' notice or immediately for breach not remedied in 14 days.
- b. On termination, unpaid invoices are due and IP reverts as per clause 8.

17. Force Majeure

- a. Neither party liable for delays caused by events outside reasonable control. Affected party must notify and mitigate impact.

18. Dispute Resolution

- a. Parties will attempt amicable resolution. If unresolved in 30 days, disputes are subject to the jurisdiction of the law and courts of England & Wales.

19. Notices

- a. All notices must be in writing and delivered to addresses set out in the Proposal or company details.

20. Assignment

- a. Client may not assign any obligations or rights under this agreement or any others with the Agency without the Agency's consent.
- b. The Agency may assign rights or obligations to affiliates for fulfilment of an agreed service and/or upon sale of the Agency.

21. Severability

- a. If a clause is invalid, the unaffected clauses remain effective.

22. Survivability

- a. Clauses on IP, confidentiality, indemnity, limitation of liability, and payment survive termination.

23. Electronic Execution

- a. Electronic signatures or email confirmation are effective execution methods.

24. Entire Agreement & Variation

- a. This Agreement plus Proposal/CSA contains the full agreement.
- b. Variations must be in writing and signed by both parties.